STARCHASE

Standard Terms and Conditions

Article 1 PRICING AND ORDERING

1.1 Pricing.

1.1.1 Products. Customer pricing is set forth as provided in a formal, enumerated quotation, by an authorized StarChase representative.

1.1.2 Services. Prices for additional engineering/installation services other than these needed to install or operate Pursuit Management Equipment and/or other equipment and accessories supplied pursuant to this Agreement are established under this Agreement on an hourly basis at the then current rates.

1.2 Purchase Orders. Customer shall purchase only those Products set forth on Orders duly issued by an authorized representative of Customer's Purchasing Department. Each Order shall, at a minimum, specify the following information for each Product listed thereon:

(1) the Part Number and Product Name.
(2) the quantity ordered.
(3) the total purchase price.
(4) shipping instructions.
(5) delivery destination with one or more points of contact clearly marked "to the attention of:" (the "Delivery Destination"); and
(6) the required delivery date for the Product at the Delivery Destination (the "Delivery Date").

Purchase Orders shall be submitted to Seller in writing and may be sent electronically, by facsimile, or by mail. Scanned electronic delivery is the preferred method.

1.3 Acceptance. Unless Customer is notified to the contrary in writing within fifteen (15) days following the day StarChase's financial department received an Order from Customer, StarChase will be deemed to have accepted the Order for generally available Products and/or Maintenance Services. StarChase agrees that it will not unreasonably refuse acceptance of any Order issued by the Customer pursuant to this Agreement. Each Order will be deemed to be incorporated as part of this Agreement upon Customer's issuance thereof. However, any pre-printed terms and conditions set forth on the Order or any other document submitted by Customer will be null and void, unless previously negotiated and mutually accepted in writing between StarChase and Customer.

1.4 StarChase's – Total Solutions Package (TSP / annual subscription) term begins 30 days upon acceptance of StarChase Hardware by customer (Please see **Article 3 ACCEPTANCE BY CUSTOMER**).

1.5 Total Solutions Package (TSP / annual subscription) provides allocated training rounds and a full complement of "live" GPS rounds per hardware unit (includes all data charges incurred by StarChase at no additional cost to agency) and access to CoreView real-time mapping platform with support.

Article 2 SHIPMENT AND DELIVERY

2.1 Packing. Unless otherwise agreed in writing by the Parties, all Products shall be prepared, marked (bar coded where possible), and packed for shipment in accordance with StarChase's standard packing procedures.

2.2 Shipping. Customer will be responsible for all transportation charges for the Products. StarChase will not make partial shipment of individual components of Products without prior approval from the Customer. In the absence of shipping instructions, StarChase shall select a carrier.

2.3 Delivery and Risk of Loss. StarChase shall comply with any reasonable special shipping instructions provided by Buyer. Unless otherwise agreed in writing, delivery under this Agreement shall be complete upon transfer of possession to a common carrier, FOB Virginia Beach, Virginia, whereupon all risk of loss, damage or destruction of the Products or other items delivered to Customer under this Agreement shall pass to Customer.

Article 3 ACCEPTANCE BY CUSTOMER

3.1 In General. Unless the parties have previously agreed upon alternative acceptance criteria for the Products, as specified in writing and set forth in the applicable Order, Products delivered to Customer will be subject to the acceptance procedure set forth in this Article 3. The provisions of this Article 3 will also apply to all replacement Products.

3.2 If StarChase Installs. Acceptance of Products that StarChase is responsible to install shall occur upon the following:

(1) completion of StarChase's standard installation procedures that demonstrate conformance to StarChase's applicable publicly available written specifications in effect at the time of delivery; and

(2) successful demonstration that the Products meet StarChase's written specifications, if any, as mutually agreed upon by the parties in writing prior to the time of Order.

3.3 If Customer Installs. With respect to Products which are Customer's responsibility to install, Customer will have a period of fifteen (15) days from receipt by Customer to test such Products to assure that they:

(1) successfully operate in conformance to StarChase's applicable publicly available installation and operation specifications in effect at the time of delivery; and

(2) successfully demonstrate that they meet the Customer's written specifications, if any, as mutually agreed upon by the parties in writing prior to the time of the Order.

Unless StarChase has been notified by the Customer that such Products do not conform to such specifications, such Products will be deemed to have been accepted by the Customer at the end of such fifteen (15) daytime period.

3.4 Adjustments and Replacements. Upon written notification of a Product's nonconformance, StarChase will, at its expense, promptly adjust, repair, or replace the Product(s) as required so that they can be accepted in accordance with the provisions of this Article 5.

3.5 Installation of StarChase Hardware must be performed by a StarChase certified technician, StarChase certified customer agency technician, or StarChase certified third-party technician. Installation performed by any non-StarChase certified technician immediately voids original and or extended warranty of StarChase hardware.

3.6 Specific to Guardian-HX hand-held product, customer acceptance is defined by successful receipt of product in good working order notwithstanding any damage incurred during delivery transport (see **Article 2 SHIPMENT AND DELIVERY)**

Article 4 BILLING AND PAYMENT

4.1 Billing. StarChase shall invoice Customer for all Products at the time of shipment. StarChase shall issue a separate invoice for each Order containing the following information ("Invoice(s)"):

(1) the description and quantity of Products ordered
(2) the quantity of Products shipped
(3) the Delivery Destination and day/date confirming product delivery
(4) the Purchase Order number
(5) the Purchase Price for each Product
(6) the total Purchase Price for the Purchase Order; and
(7) any applicable taxes, freight charges, and applicable discounts.

All Invoices, bills of lading, and freight bills for the Products shall be delivered to Customer at the "Bill To" address shall be shown on the face of Customer's Purchase Order.

4.2 Payment. Subject to the terms and conditions contained herein, Customer will remit payment of the Purchase Price due hereunder, less any applicable discounts or offsets, for each Conforming Product within thirty (30) days of Customer's receipt of the Invoice, therefore. All invoiced amounts shall be subject to a two percent (2%) early payment discount for all payments remitted by the Customer within fifteen (15) days of the Customer's receipt of such invoice. All fees paid are not refundable unless expressly stated otherwise.

4.3 Late Payment. Any payment which is past due and caused by reasons attributable to Customer will be subject to a monthly charge at the rate of one- and one-half percent (1.5%) per month of the amount due or the maximum rate permitted by law, whichever is lower.

Article 5 OBLIGATIONS OF CUSTOMER

5.1 Customer agrees that it has a duty to become familiar with the operational and technical requirements set forth by StarChase and to advise, and hereby warrants that it has advised, StarChase of any requirements, including, Internet access, data storage, installation requirements outside the normal scope, installation change orders, modifications, alterations, special construction or any other requirement necessary to provide delivery, implementation and operation of such StarChase equipment and/or services, or other items to achieve optimal performance. Customer further agrees that, for all such equipment and/or services provided by StarChase, it has made StarChase aware of any modifications or alterations needed, and StarChase agrees to provide all such equipment and/or services for the prices submitted to Customer in the Agreement. If Customer identifies any unforeseen discrepancy that impairs the performance of the Pursuit Management equipment and/or accessories any amendments/change orders to rectify the impairment must be specifically authorized by StarChase in writing.

5.2 Customer agrees to promptly notify StarChase of any transfer of hardware units to other vehicles and obtain the required transfer kit to maintain product warranty.

5.3 Customer agrees to comply with Guardian-HX Operating Manual. Failure to follow all safety precautions and handling requirements may result in forfeiture of warranty claims.

Article 6 LIMITED WARRANTY

6.1 Limited Warranty. StarChase hereby represents and warrants that: (a) it is authorized:
(1) to sell the StarChase Hardware and Third-Party Hardware; and
(2) license the StarChase Software, third party software embedded in the StarChase Software and StarChase Hardware and Third-Party Software and Hardware to Customer.

(b) unless otherwise agreed to in an Order, all StarChase Hardware and Third-Party Hardware will be:
(1) of genuine and authentic manufacture; and

(2) new and unused (but may contain some remanufactured components that will operate as new).

(c) all Maintenance Services, including Maintenance Updates and Software Upgrades that may be provided as a component software Maintenance Services furnished by StarChase will be performed in a professional manner by qualified personnel.

(d) StarChase Hardware will be free from manufacturing defects and will be in good operating condition in accordance with StarChase's publicly available written specifications in effect at the time of delivery during StarChase's initial two-year warranty period for the StarChase Hardware (Guardian-VX) and one-year warranty period for (Guardian-HX); and

(e) StarChase Software (exclusive of Maintenance Updates and Software Upgrades, which are provided as components of applicable Maintenance Services) will perform in accordance with StarChase's publicly available written specifications in effect at the time of Delivery during StarChase's initial two-year warranty period (Guardian-VX) and one-year warranty period (Guardian-HX). The warranty periods specified in (d) and (e) above will commence on the date of installation of the StarChase Hardware and StarChase Software as applicable (Guardian-VX) and receipt of delivery (Guardian-HX) (Please see: **Article 3 ACCEPTANCE BY CUSTOMER).** However, if upon installation (Guardian-VX) or customer acceptance (Guardian-HX) the StarChase Hardware and/or StarChase Software is not performing in accordance with StarChase's publicly available written specifications or the mutually agreed upon specific acceptance criteria, if any, the warranty periods specified in (d) and (e) above will be extended for the period it takes StarChase (or authorized contractor) to make the necessary adjustments, repairs or replacements. StarChase will, at its sole option, cost, and expense, promptly adjust, repair, or replace the Products that do not conform to the warranties specified herein or re-perform Maintenance Services as required to satisfy the warranties specified herein.

6.2 Extended Warranty. If applicable, Customer may purchase StarChase's Annual Post Warranty Service

6.3 Third-Party Products. All Third-Party Products are subject to the third party's warranty provisions, copies of which will be provided to Customer by StarChase. Notwithstanding the warranties specified in this Article 6 for Third-Party Hardware, StarChase will pass through to Customer, as between Customer and the third party, the benefit of any third-party warranty provisions applicable to Third-Party Products and such warranty provisions are hereby passed through by StarChase for the benefit of Customer. Third Party Software that is licensed by StarChase. At Customer's option, Customer may engage StarChase for support of such Third-Party Software licensed by StarChase to Customer in accordance with terms, conditions and charges mutually agreed upon in writing by the authorized representatives of both parties.

6.4 Replacement Parts. Any replacement of StarChase Hardware or part provided by StarChase as part of its warranty service will be comparable in function and performance to the replaced original StarChase Hardware or part and is warranted for the remainder of the replaced original StarChase Hardware or parts limited warranty period, of ninety (90) days, whichever is greater. Whenever Customer is responsible to install replacement of StarChase Hardware or parts:

(1) Customer will promptly return the replaced StarChase Hardware or part which will become the property of StarChase on an exchange basis.

(2) StarChase is responsible for the shipping and insurance charges associated with the replacement and replacement of StarChase Hardware and parts shipped to and from Customer as part of StarChase's limited warranty service.

(3) Service to StarChase Hardware must be performed by a direct StarChase certified technician, StarChase certified customer technician, or StarChase certified third-party technician

(4) Customer will not make any returns to StarChase without first obtaining a written Return Merchandise Authorization (RMA) number by emailing support@starchase.com, which shall be

promptly issued by StarChase upon request by customer. StarChase will ship out replacement(s) once it's been determined the current part(s) is defective or faulty. StarChase will provide customers with a prepaid shipping label to return defective part(s) associated with RMA. All Products for return shall be marked with a Return Merchandise Authorization number issued by StarChase to enable tracking.

(5) To avoid being billed for unreturned equipment, please return all your StarChase products related to this warranty within 60 days of the date your equipment was received.

(6) Customer agrees to pay StarChase the full purchase price in connection with any Products which the customer fails to return within the specified time period listed herein.

6.5 Return / Refund Process**:** Products purchased from StarChase, LLC. (StarChase) will be accepted for return without a restocking fee if received within thirty (30) days of receipt and subject to the terms herein. Products older than 30 days will be subject to a 35% restock charge. Note: custom and discontinued items are non-returnable unless return is due to an error by StarChase. **To submit a Return Request:**

(1) email support@starchase.com to obtain Return Authorization Number.

(2) original purchase order number must be provided along with a brief explanation for return / refund request.

(3) customers will receive acknowledgement of request and a Return Authorization Number within 24 hours of submission, from the StarChase Customer Support team.

6.6 Return Material Handling:

(1) Please include a copy of the Return Authorization form with the merchandise being returned

(2) Returns must be in original packaging and condition.

(3) Material must be packed in a manner that will protect it from damage in transit.

(4) Material received by StarChase that is not in its original condition may be subject to a restocking fee or deemed non-returnable.

6.7 Return Shipping Costs:

(1) Return shipping costs are the responsibility of the customer except in the case of defective material.

(2) Traceable shipping method is required such as UPS or FedEx. Always retain a record of the tracking number(s).

(3) Lost packages and freight claims are the responsibility of the customer.

6.8 Credit:

(1) Returned material is subject to inspection. After material confirmation, credit will be issued within 30-45 days.

(2) When possible, Credit will be issued in the same manner as the original payment method.

(3) If material arrives back with damage due to inadequate packaging, StarChase will not issue credit for the product.

(4) Materials returned outside the 90-day return window, not in original or unused condition, will be subject to a restock charge and/or deemed non-returnable.

6.9 Restrictions on Warranty. This express warranty is extended by StarChase to the original purchaser only. The limited warranties set forth in this Article 10 do not apply to problems to the extent that they arise from

(1) a product subject to misuse, accident, neglect, or damage.

(2) interoperation with third party products which are not recommended or approved by StarChase.

(3) Service to StarChase Hardware must be performed by a direct StarChase certified technician, StarChase certified customer technician, or StarChase certified third-party technician. Maintenance performed by any non-certified StarChase technician, without the expressed written consent and at the discretion of StarChase, will restrict and or void original/extended warranty of StarChase hardware.

(4) use of StarChase Products in an environment or in a manner or for a purpose for which the StarChase Products were not designed; or

(5) Customer's failure to implement all previously supplied software or physical hardware Updates.

6.10 Batteries; Charging Systems. Batteries and charging systems are excluded from this warranty but carry their own separate limited Mfg. warranty.

6.11 Operation of Warranty. In order to obtain performance of this warranty, Customer must contact its StarChase Manufacturer Representative or StarChase at the contact information above, support@starchase.com Should any returns be initiated, a Return Merchandise Authorization (RMA) number must be clearly marked on the returned merchandise shipping container.

6.12 Disclaimer. STARCHASE DOES NOT WARRANT THAT THE OPERATION OF THE PRODUCTS WILL BE UNINTERRUPTED OR ERROR FREE. EXCEPT AS EXPRESSLY STATED IN THIS SECTION 6.8, STARCHASE MAKES NO OTHER WARRANTIES, EXPRESS OR IMPLIED, ABOUT THE STARCHASE PRODUCTS, MAINTENANCE SERVICES OR OTHER STARCHASE SERVICES. EXCEPT AS EXPRESSLY STATED IN THIS SECTION 6.8, STARCHASE DOES NOT MAKE, AND DISCLAIMS ALL WARRANTIES, EXPRESS AND IMPLIED, WITH RESPECT TO THIRD PARTY PRODUCTS. STARCHASE MAKES NO OTHER WARRANTIES WITH RESPECT TO STARCHASE PRODUCTS, MAINTENANCE SERVICES OTHER STARCHASE SERVICES OR THIRD-PARTY PRODUCTS INCLUDING, BUT NOT LIMITED TO, THE IMPLIED WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, AND ANY WARRANTY ARISING BY COURSE OF DEALING, PERFORMANCE, OR USAGE OF TRADE.

6.13 Any alteration of the Guardian-HX original manufactured product or third-party components (launcher, batteries, or accessories) or use of unauthorized internal and or external components and attachments without written consent and at StarChase's discretion will void the warranty.

Article 7 INDEMNIFICATION

7.1 Intellectual Property Claims. With respect to StarChase Products, StarChase hereby agrees to indemnify, defend (with counsel satisfactory to Customer) and hold Customer harmless from and against any third party claim, suit, action or proceeding that the StarChase Products infringe any patent, copyright, trade secrets or other proprietary right, and pay all amounts agreed upon in settlement, costs, expenses (including attorney's fees) and the resulting judgments and damages finally awarded against Customer by a court of competent jurisdiction. In connection with StarChase's indemnification obligation pursuant to this paragraph, Customer shall provide StarChase with

(1) prompt notification in writing of such claim,

(2) sole control over the defense and settlement thereof, and

(3) reasonable cooperation, at StarChase's expense, in response to a StarChase request for assistance.

Customer shall be entitled to participate in the defense of any such claim at its own expense including its attorney's fees for which StarChase will not be responsible.

7.2 Remedies. If Customer is enjoined, or is otherwise prohibited, from using StarChase Products, as a result of or in connection with any such claim, suit, action or proceeding, or should StarChase Products become or in StarChase's opinion likely to become, the subject of such a claim, suit, action or proceeding, StarChase shall, at its option and expense,

(1) modify StarChase Products so that they become non-infringing and non-violative, without diminishing the usefulness of StarChase Products to Customer.

(2) procure for Customer the right to make continued use thereof; or

(3) if neither (1), (2) or (3) can be accomplished on commercially reasonable terms, request the return of the StarChase Products at StarChase's expense and upon receipt, promptly refund to Customer as appropriate, the license fee for StarChase Software less a reasonable amount for past usage, or a pro rata amount of the purchase price for the returned StarChase's Products, taking into account the useful life and depreciated value of the StarChase Hardware as determined by Customer in accordance with its normal accounting practices (e.g., three (3), four (4) or five (5) years as applicable).

7.3 Limitations. StarChase shall have no liability to the extent the alleged infringement is based on:

(1) the use of StarChase Products in combination with third party products not furnished by StarChase or not recommended or approved in writing by an authorized representative of StarChase.

(2) StarChase Products used for a purpose or in a manner for which the StarChase Product was not designed.

(3) use of any older version of the StarChase Software when use of a newer StarChase revision made available and known to Customer would have avoided infringement.

(4) any modification to the StarChase Product not made by StarChase or made without StarChase's written approval.

(5) any unique custom StarChase software made by StarChase pursuant to Customer's specific instruction; or

(6) any intellectual property right owned or licensed by Customer.

THE PROVISIONS OF THIS ARTICLE 7 STATE CUSTOMER'S SOLE AND EXCLUSIVE REMEDY AND STARCHASE'S ENTIRE LIABILITY FOR INFRINGEMENT CLAIMS WITH RESPECT TO STARCHASE PRODUCTS.

7.4 Mutual. Each party hereby agrees to indemnify and hold the other ("Indemnified Party") harmless from and against any and all damages, losses, judgments, settlement amounts, costs and expenses (including attorney's fees) that the Indemnified Party may suffer or incur that arise out of, are in connection with, or result from bodily injury (including death), personal injury or damage to tangible property to the extent that such damage or injury are caused by, arise out of, are connected with or result from its acts, negligence or willful misconduct or that of its employees, agents, or subcontractors. In connection with each party's indemnification obligations pursuant to this paragraph, the Indemnified Party shall provide the other party with

(1) prompt notification in writing of the claim.

(2) sole control over the defense and settlement thereof; and

(3) reasonable cooperation, at the other party’s expense, in response to the other party’s request for assistance.

7.5 Third Parties. StarChase hereby passes through to Customer the benefits of any indemnification from the third party (e.g., patent; copyright, trade secret or other proprietary rights infringement indemnification) with respect to third party software embedded in the StarChase Software and

StarChase Hardware and Third-Party Products to the extent such indemnification may be passed through to Customer.

Article 8 FORCE MAJEURE

8.1 General. StarChase shall not be liable for delays or lack of performance if the failure to fulfil this Agreement arises out of causes beyond the control and without the fault or negligence of StarChase. The Customer shall not be liable for any breach of Agreement if the breach arises out of causes beyond the control and without the fault or negligence of the Customer. Such causes may include, but are not restricted to, acts of God or the public enemy, acts of the state and federal governments in either their sovereign or contractual capacities, fires, floods, epidemics, quarantine restrictions, strikes, freight embargoes, and unusually severe weather; but in every case the failure to perform must be beyond the control and without the fault or negligence of StarChase or the Customer.

8.2 Subcontractors. If the failure to perform is caused by the default of a subcontractor, and such default arises out of causes beyond the control of both StarChase and subcontractor, and without the fault or negligence of either of them, StarChase shall not be liable for any excess costs for failure to perform, unless the supplies or services to be furnished by the subcontractor were obtainable from other sources in sufficient time to permit StarChase to meet the required delivery schedule.

Article 9 DISPUTE RESOLUTION

Mindful of the cost in time, energy, and money of resolving a dispute by litigation, the parties agree that the sole and exclusive procedure for the resolution of a dispute shall be as follows:

9.1 Informal Negotiation. The parties shall attempt in good faith to resolve promptly any dispute not resolved in the regular course of business by informal negotiations between senior representatives of the parties having direct responsibility within their respective organizations for the administration of this Agreement.

9.2 Formal Negotiation. if such informal negotiations do not result in resolution of the dispute, either party may initiate further negotiations by delivery to the other of a written notice. Within ten (10) days following the receipt of any such notice, the recipient party shall deliver to the initiating party a written response of the notice. Each such notice and response shall include the party's description of the dispute (including any suggestions for the resolution of the dispute), and designation of a senior representative who will represent the party in further negotiations, who shall have authority to resolve the dispute on behalf of such party. The designated representatives shall meet on at least one occasion (and may meet as often as they deem necessary), at a mutually acceptable time and place, and attempt in good faith to resolve the dispute.

9.3 Arbitration. If, within thirty (30) days following the initial written notice described in Section 9.2, the formal negotiation has not produced a resolution of the dispute, either party may submit the dispute to be resolved by arbitration by one arbitrator ("Arbitrator") in accordance with the rules of the American Arbitration Association, applicable law and the provisions of this Agreement. StarChase shall have the sole discretion to appoint the Arbitrator; provided, however, that the Arbitrator

(1) shall not be a current or former employee of the parties.

(2) shall have sufficient expertise in the subject matter of the dispute; and

(3) shall not receive any payments from the parties except in accordance with the provisions of Article 9.

The Arbitrator shall not in any event award punitive or exemplary damages but may award equitable relief and arbitration costs. The Arbitrator's decisions shall be final and conclusively binding on the parties, and

judgment upon such award may be entered in any court of competent jurisdiction. Any arbitration of a dispute shall be held in Virginia Beach, Virginia.

9.4 Specific Enforceability. The parties may prevent violations or enforce the provisions of this Agreement through all rights and remedies existing in their favor, whether at law or in equity, including specific performance and injunctive relief. The parties agree that the subject matter of this Agreement is unique and that money damages may not be an adequate remedy for any violation of the provisions of this Agreement and that, notwithstanding this Article 14, any party may apply to any court of law or equity, which is of competent jurisdiction, for equitable relief and shall be entitled to specific performance or other equitable relief to enforce or prevent any violations of this Agreement.

9.5 Injunctive Relief. Customer acknowledges that, in the event of a breach or threatened breach by Customer of any of the provisions of this Agreement, StarChase will not have an adequate remedy in money or damages. StarChase shall therefore be entitled to obtain injunctive relief against any such breach or threatened breach by Customer in any court of competent jurisdiction. StarChase's rights hereunder shall not in any way be construed to limit or restrict its right to seek or obtain other damages or relief under this Agreement or under applicable law.

9.6 Cumulative Remedies. No right or remedy in this Agreement is intended to be exclusive, but each shall be cumulative and in addition to any other remedy referred to herein or otherwise available to a party at law or in equity; and the exercise by a party of any one or more of such remedies shall not preclude the simultaneous or later exercise by a party of any or all such other remedies.

9.7 Attorney's Fees. The reasonably prevailing party shall be entitled to recover its reasonable attorney's fees and costs incurred in any dispute arising out of this Agreement, including at trial and on appeal, and including reasonable attorneys' fees and costs incurred in any action brought solely to recover attorneys' fees and costs to which it is entitled pursuant to this paragraph.

Article 10 BSCC CA Grant Compliance

10.1 Payment schedule: Customer agency is invoiced upon shipment of all goods ordered. Customer agency is invoiced for installation and training services, once satisfactorily completed.

10.2 Termination for cause/convenience: customer agency's right to terminate for cause/ convenience is at its' discretion and must be provided within 30 days of the termination date. Customer agency is responsible for payment of services in advance (annually) and may be credited any months in which services will not be utilized in the remaining period.

10.3 Audits/Examination: StarChase agrees to allow BSCC, the Federal awarding agency, the Comptroller General of the United States, or any of their duly authorized representative, access to any books, documents, papers and records of the contractor which are directly pertinent to the program for the purpose of making audits, examinations, excerpts and transcriptions, for all contracts greater than $100,000. Such requests must be formally made in writing by authorized person(s).

10.4 StarChase is and will remain in full compliance with all Equal Employment Opportunity requirements per Executive Order 11246 as amended by Executive Order 11375 and supplemented at 41 CFR 60 (required on all CBO - July 2023 Page 41 BSCC Grant Administration Guide contracts, and on all governmental entity construction contracts awarded in excess of $10,000).

10.5 IT & DATA STANDARDS

- All data transactions performed within the CoreVeiw mapping platform and API integrations are hosted on/via AWS GovCloud Compliant infrastructure.
- Data is secured while in transition and at rest via SSL & TLS 2.0 encryption methodologies.
- Data is stored/encrypted in AWS GovCloud Compliant infrastructure with redundancy and failover mechanisms.
- Data is retained by default, for 3 years unless otherwise stated in writing. Specific terms of retention that deviate from this standard must be agreed upon in writing and executed by authorized signatures from customer agency and StarChase. Once the retention period has expired, agency data is deleted from all storage resources and services.
- StarChase's CoreView Mapping Platform is web-based. No proprietary software or plugins are required. CoreView is viewable on any internet accessible device.

10.6 SCOPE OF WORK for Guardian-VX

1. **Vehicle Launcher System** (4 components):
    a. launcher (either in-grille or on push bumper)
    b. micro-compressor (under hood mount)
    c. computer box (under hood mount)
    d. control panel (interior console or other specified location inside the vehicle)

2. **Installation** – performed on-site by StarChase employed technicians. Agency fleet technicians or third-party upfitter on-site training and certification will be provided if requested prior to installation date. Customer agency is provided a Certificate of Insurance (COI) upon written request by customer agency with appropriate recipient/entity information, after receipt of purchase order. Vehicle Checklists, post-installation documents, and installation guide provided upon completion. Additional system specification sheets provided to the agency's designated StarChase Program Manager and fleet services manager or third party upfitter. The Guardian-VX system is designed to easily repair or replace individual components – individual component price list provided upon request.

3. **Train the Trainer** Module (2 components):
    a. On-site training conducted by certified StarChase Trainers, this includes classroom and behind-the-wheel training which is pre-planned with agency designee (typically EVOC Instructor). Coordination includes review of agency training and safety guidelines, StarChase Operator Training Syllabus (classroom and practical on-track/controlled environment system use), and EVOC policy review to ensure conformity by StarChase trainers. Complete instruction of registering GPS tags, daily launcher inspections, effective system use, and CoreView mapping (view/administrative use, case analysis, and downloading). Evolution: 1 day (may be extended if number of operators exceeds 8 per session). Training rounds provided for entire evolution.

b. Dispatch training: coordinated classroom review for dispatchers, communication managers, and RTCC personnel of CoreView mapping features and functions. Evolution: .5 day.

4. **Total Solutions Package** – per launcher, fixed-cost, annual service subscription which includes:
    a. Unlimited GPS rounds
    b. 2 training rounds per launcher system purchased.
    c. Tech Support
    d. Unlimited user licenses and administration (view and admin users)
    e. Unlimited Case analysis and downloads

Note: GPS data communication charges are included in fixed-cost annual TSP.

GENERAL SERVICES AGREEMENT

This Agreement is made and entered into between the City of San Bruno ("City"), a municipal corporation, and StarChase, LLC. ("Contractor") as of_____. In consideration of their mutual covenants, the parties hereto agree as follows:

1. **Scope of Work**. Specified in StarChase's Standard Terms & Conditions.

2. **Payment Terms**. Specified in StarChase's Standard Terms & Conditions.

3. **Term of Performance**. Contractor shall begin performing the services as soon as he or she is notified by the City. Contractor shall thereafter perform and complete all services by no later than the _____.

4. **Independent Contractor**. At all times during the term of this Agreement, Contractor, its employees and agents shall be independent contractors and not employees or agents of the City. Contractor, its employees and agents shall have no authority, express or implied, to bind the City to any obligation whatsoever.

5. **Assignment and Subcontracting**. It is recognized by the parties hereto that a substantial inducement to City for entering into this agreement was, and is, the qualifications and competence of Contractor. Therefore, Contractor shall not subcontract, assign or transfer any portion of the performance contemplated and provided for in this Agreement without the approval of the City Manager. Contractor shall not subcontract any portion of the performance contemplated and provided for herein without prior written approval of the City.

6. **Indemnification**. To the fullest extent permitted by law, Contractor shall defend (with legal counsel reasonably acceptable to the City), indemnify and hold harmless City and its Council, officers, agents, departments, officials, representatives and employees (collectively "Indemnitees") from and against any and all claims, suits, actions, losses, costs, damages, injuries (including, without limitation, economic harm, injury to or death of an employee of Contractor or its Subcontractors), expenses and liabilities of every kind, nature and description, at law or equity (including, without limitation, incidental and consequential damages), and reasonable attorneys' fees and costs, litigation expenses, court costs, and fees of expert consultants or expert witnesses, and costs of investigation (collectively "Defense Costs") that arise from, relate to or pertain to, directly or indirectly, in whole or in part, any negligent or reckless act or omission or any willful misconduct of Contractor, any Subcontractor, anyone directly or indirectly employed by them, or anyone that they control (collectively "Liabilities"). Contractor shall pay and satisfy any judgment, award or decree that may be rendered against the Indemnitees except to the extent that liability is caused by the Indemnitees' sole negligence, active negligence, or willful misconduct, but shall apply to all other Liabilities.

Notwithstanding the foregoing, nothing herein shall be construed to require Contractor to defend or indemnify the Indemnified Parties from any Claim arising from the sole negligence, active negligence, or willful misconduct of the Indemnified Parties. This Section 9 shall be interpreted and applied to be consistent with the limitations in Civil Code sections 2782 and 2782.8. Nothing in this indemnity shall be construed as authorizing any award of attorney's fees in any action on or to enforce the terms of this Agreement. This indemnity shall apply to all

claims and liability regardless of whether any insurance policies are applicable. The policy limits do not act as a limitation upon the amount of indemnification to be provided by the Contractor.

7. **Insurance**. Throughout the term of this Agreement, Contractor shall obtain and maintain, at its own expense, the minimum insurance coverage set forth below. The City and its elected officials, officers, and employees shall be named as additional insureds on all policies. This Agreement is expressly contingent upon the insurance requirements being met, and this Agreement shall not be complete and no work may commence until Contractor has provided adequate proof of insurance. All insurance required by this section is to be placed with insurers with a Bests' rating of no less than A:VII.

(a) Statutory Worker's Compensation Insurance and Employer's Liability Insurance for any and all persons employed directly or indirectly for Contractor with limits not less than $2,000,000.

(b) Commercial General and Automobile Liability insurance in an amount not less than $2,000,000 per occurrence.

If applicable, Contractor shall not allow any subcontractors to commence work on any subcontract until all insurance required of the Contractor has also been obtained for the subcontractor in the amounts indicated herein.

8. **Nondiscrimination and Equal Opportunity**. During the performance of this Agreement, Contractor shall not discriminate against an employee or applicant for employment because of race, religion, creed, color, national origin, sex, sexual orientation or age.

9. **Documents**. If applicable, Contractor shall deliver to the City, on request of the City Manager, copies of all original papers, documents and any other materials, in electronic or any other form, prepared by Contractor pursuant to this Agreement.

10. **Licenses**. If a license of any kind, which term is intended to include evidence of registration, is required of Contractor, its employees, agents or subcontractors by federal or state law, Contractor warrants that such license has been obtained, is valid and in good standing, and Contractor shall keep it in effect at all times during the term of this Agreement, and that any applicable bond has been posted in accordance with all applicable laws and regulations.

11. **Time is of the Essence.** Contractor agrees to diligently prosecute the services to be provided under this Agreement to completion and in accordance with the schedule, time is of the essence.

12. **Termination**. This Agreement may be terminated or suspended by the City upon fifteen (30) days written notice. Upon receipt of such notice from the City, Contractor shall immediately stop all work under this Agreement. In the event of termination by the City, Contractor shall be entitled to payment on a pro rata basis for the services performed as of the date of termination, to the extent they were performed in accordance with this Agreement.

13. **Severability**. If any term or portion of this Agreement is held to be invalid, illegal, or otherwise unenforceable by a court of competent jurisdiction, the remaining provisions of this Agreement shall continue in full force and effect.

14. Contract Administration and Notice. This Agreement shall be administered on behalf of the City by the San Bruno Police Department. Any written notice between the parties shall be sent to:

City of San Bruno Attention: Ryan Johansen, Police Chief San Bruno Police Department 1177 Huntington Avenue San Bruno, CA 94066	StarChase, LLC. Attention: President Trevor Fischbach tfischbach@starchase.com

15. Integration. This Agreement, represents the entire and integrated agreement between City and the Contractor and supersedes all prior negotiations, representations or agreements, either written or oral. This Agreement may be modified or amended only by a subsequent written agreement signed by both parties.

16. Miscellaneous. The laws of the State of California shall govern this Agreement and all matters relating to it and venue for state court shall be in Redwood City and for federal court in San Francisco. In the performance of this Agreement, Contractor shall abide by and conform to any and all applicable laws, including, but not limited to the San Bruno Municipal Code.

17. Prevailing Wage. This work is subject to prevailing wage. The Contractor shall comply with all California State laws and Department of Industrial Relations relating to employment and wages. The hourly wages to be paid for laborers, workers, or mechanics shall not be less than the prevailing rates for an hour's work in the same trade or occupation in San Mateo County.

IN WITNESS HEREOF, the parties have caused their authorized representatives to execute this Agreement on _____ _____, 20__. This Contract is not valid until signed by all parties below.

CITY:

_____

By: City Manager

CONTRACTOR

_____

By: Trevor Fischbach

Title: President, StarChase, LLC.

ATTEST:

_____
Contractor's San Bruno License Number

_____
City Clerk

_____
Contractor's Tax I.D. Number

APPROVED AS TO FORM:

_____
City Attorney